IN THE CIRCUIT COURT, ATASOMANSO - KUMASI, HELD ON 31ST DAY OF JULY 2025, BEFORE HER HONOUR LAWRENCIA A.A.D. GYAMFI (Ms.), CIRCUIT JUDGE.

SUIT NO. ASH/AM/CC/C4/05/2025

EWURAA ABENA OWUSUAA MANU - PETITIONER

VS

MR. THOMAS SARFO MANU - RESPONDENT

JUDGMENT:

i. Overview:

[1] The Petitioner and the Respondent married on 5th July, 2010, under Part III of the Marriages Act (1884-1985), CAP 127 at the Registrar's Office (KMA) Kumasi, after which the Parties cohabited in Accra. There is one child to the marriage, aged 10 years at the time of the Petition. On 24th January 2025, the Petitioner filed a Petition for divorce against her husband, the Respondent, seeking the following reliefs;

i. That the said marriage between the parties be dissolved.

ii. An order for custody of the issue of the marriage with reasonable access to the Respondent.

iii. An order directed at the Respondent to bear the educational needs of the issue of the marriage.

iv. An order directed at the Respondent to maintain the issue of the marriage with a monthly sum to be determined by the Honourable Court.

v. Any further order(s) that this Honourable Court may deem fit.

[2] The Petitioner alleged, among other things, that for a continuous period of seven (7) years immediately preceding the Petition, the parties had not lived together as husband and wife. Additionally, the Petitioner claimed that owing to the Respondent's conduct, she had experienced anxiety and distress and could not reasonably be expected to live with him. She outlined the lack of communication between the parties and noted that over time, the Respondent's attitude had unreasonably changed towards her, causing her significant emotional and psychological distress.

[3] The Petitioner asserted that the efforts made by mutual friends and some family members of both the Petitioner and the Respondent to reconcile them had been unsuccessful.

ii. Respondent's Answer

[4] The Respondent, who was served with the Petition, entered an appearance through his lawyer and filed an answer to the Petition. In his answer, the Respondent disputed the averments in the Petition and cross-petitioned for the dissolution of the marriage.

[5] He admitted that they had not lived together as husband and wife for more than seven years immediately preceding the institution of the suit.

[6] The Respondent argued that it was, in fact, the Petitioner who had prevented any reasonable communication between them, and that it was rather the Petitioner who had caused him emotional and psychological distress.

[7] The Respondent prayed that the Court, in granting the reliefs sought by the Petitioner, take cognisance of the fact that maintaining a child is a shared responsibility of both parents and make orders favourable to both parties.

[8] The pleadings having closed, the Court set the matter down for hearing. However, prior to the commencement of the trial, the parties reached an agreement and filed terms to settle the ancillary reliefs, requesting that the Court adopt the terms of settlement as a consent judgment between them. Being a matrimonial cause, the Court directed that evidence be presented to determine whether the marriage had broken down beyond reconciliation, in accordance with Sections 2(2) and (3) of the Matrimonial Causes Act 1971 (Act 367).

[9] The Petitioner testified that she is a Medical Doctor currently working as a Paediatrician-Endocrinologist in the Department of Child Health at Korle-Bu Teaching Hospital and resides in the Korle-Bu Doctors SSNIT Flat, all in Accra.

[10] According to the Petitioner, they were married on July 5, 2010, and have one child from the marriage, who is now ten years old. She submitted the marriage certificate of the parties, numbered KMA 925/10, as **Exhibit "A"**. According to her, she lives in Accra while the Respondent resides in Kumasi. At the time of the marriage, she was a Medical Doctor at Legon Hospital in Accra.

iii. Petitioner's Case

[11] The Petitioner repeated the averments in her Petition and stated that the marriage between herself and the Respondent produced only one issue, namely: Jason N'adom Manu, who is 10 years old.

[12] She stated that there were no proceedings or pending proceedings in any court of competent jurisdiction concerning the marriage or the child of the marriage.

[13] The Petitioner stated that they had not cohabited as a married couple for a continuous period of seven years prior to submitting the Petition.

[14] She expressed her inability to continue living with the Respondent due to his unreasonable behaviour, which caused her significant anxiety, distress, and embarrassment. In her opinion, the marriage had broken down beyond reconciliation.

[15] The Petitioner disclosed that there was a lack of communication between them, and as time progressed, the Respondent's attitude towards her changed, leading to significant emotional and psychological distress. Several attempts at reconciliation by the parties, their mutual friends, and some family members had been unsuccessful.

[16] She concluded by praying that the Court dissolve the marriage celebrated between the parties in Kumasi on 5th July 2010, and grant her custody of the issue of the marriage, with reasonable access for the Respondent.

[17] She further prayed for an order directing the Respondent to pay the school fees in full and to provide monthly maintenance for their child, with an amount to be determined by the Court.

iv. Respondent's Case

[18] The Respondent testified that he is a teacher at Apple Valley International School in Kumasi. According to him, after the parties married under CAP 127, they cohabited in a rented apartment in Accra.

[19] According to the Respondent, he and the Petitioner had not lived together as husband and wife for more than seven (7) years immediately preceding the institution of this suit. He further explained that, as a couple, they lived in separate houses. Currently, the Petitioner lives and works in Accra, but he resides and works in Kumasi.

[21] He indicated that all efforts by family members and mutual friends to reconcile them had been unsuccessful, as the Petitioner had not made it possible for any reasonable communication between them.

[22] The Respondent testified that the Petitioner had behaved in such a manner that he could not reasonably be expected to live with her, as the Petitioner had caused him much anxiety and distress. In his testimony, the Respondent also expressed his agreement to the dissolution of the marriage.

v. Proceedings

[23] The parties informed the court that they had reached a settlement on the ancillary reliefs. As part of these terms, they agreed that their marriage had broken down beyond reconciliation and should be dissolved. Consequently, they filed the terms of settlement on 5th March, 2025.

[24] Being a Matrimonial Cause, the Court was duty bound, regardless of the Terms of Settlement filed and in accordance with Sections 2 (2) and 2 (3) of the Matrimonial Causes Act, 1971 (Act 367), to inquire into the marriage of the parties, by hearing their testimony, for a determination, as to whether or not, the marriage celebrated between the Parties, had broken down beyond reconciliation.

vi. Legal Issue:

[25] Whether the marriage between the Petitioner and the Respondent has broken down beyond reconciliation.

vii. The Law on Divorce

[26] In Ghana, when a couple decides to marry under the Ordinance, they can only obtain a divorce through the courts. The court must reasonably inquire into the reasons for the divorce and may either grant or refuse to decree a divorce after hearing. The grounds on which a divorce can be obtained from the courts are clearly stated under the Matrimonial Causes Act, 1971 (Act 367).

[27] Under the **Matrimonial Causes Act, 1971 (Act 367)**, the sole ground for granting a divorce petition is that the marriage has broken down beyond reconciliation. To prove

that the marriage has broken down beyond reconciliation, the Petitioner is required to establish at least one of the six facts set out in Section 2(1) of Act 367 such as adultery; unreasonable behaviour; desertion for two years; consent of both parties where they have not lived together as husband and wife for two years; not having lived together as husband and wife for five years; and, finally, inability to reconcile differences after diligent effort.

[28] It is pertinent to note that under Section 2(3) of Act 367, a court shall refuse to grant a Petition for Divorce notwithstanding the fact that a Petitioner has proven any of the facts in Section 2(1) if there is a reasonable possibility of reconciliation. In the case *of* ***Adjetey v. Adjetey [1973] 1 GLR 216***, the court, in holding 2, stated that:

"On a proper construction of section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367), the court could still refuse to grant a decree even where one or more of the facts set out in section 2 (1) had been established. It was therefore incumbent upon a court hearing a divorce petition to carefully consider all the evidence before it; for a mere assertion by one of the parties that the marriage had broken down beyond reconciliation would not be enough".

[29] Before the Petitioner is allowed to prove his case, the Court, in encouraging reconciliation as far as may be practicable, Section 8 enjoins the Petitioner or his counsel to inform the court of all attempts made to effect reconciliation. In the instant case, when the court inquired about the parties' attempts at reconciliation, according to the Respondent, all attempts by their family members and mutual friends to reconcile them had failed, as the Petitioner had made it impossible for any reasonable communication to take place between them.

[30] Before I consider the above issue, I will discuss the standard of proof in divorce cases. It is essential to clarify that divorce is civil in nature. Like all civil cases, divorce

requires proof on a balance or preponderance of probabilities. Per Section 12 (1) and (2) of the Evidence Act (1975), Act 323:

"Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities".

Section 14 of Act 323 goes on further to provide that unless and until it is shifted, a Party has the burden of persuasion regarding each fact, the existence or non-existence of which is essential to the claim or defence he is asserting. This burden of persuasion is the obligation of a Party to establish a requisite degree of belief on a balance of probabilities concerning the existence or non-existence of a fact in the mind of the tribunal of fact or the Court. In divorce cases, just as in all civil cases, the degree of proof required by law is that of a balance or preponderance of probabilities. See the case of ***Adwubeng v. Domfeh [1996-97] SCGLR 660.***

[31] The Petitioner in the instant Petition has set out to prove fact **2(1)(b)**, namely, ***"that the respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the respondent"***. The Respondent Cross-Petitioner also set out to prove fact **2(1)(b)**.

32] To succeed under **Section 2(1) (b)**, the Petitioner must prove the conduct constituting the unreasonable behaviour on the part of the Respondent, and the fact that the Petitioner cannot reasonably be expected to live with the Respondent as a result of the bad behaviour. In the case of ***Hughes v. Hughes [1973] 2 GLR 342 @ 345,*** Sarkodee J. held that;

"To succeed, the petitioner must show that the respondent's conduct reached a certain degree of severity. Her conduct must be such that no reasonable person would tolerate or consider that the complainant should be called on to endure".

[33] As proof of the above ground, Hayfron Benjamin J (as he then was) held in the case of ***Mensah v. Mensah (1972] 2 G.L.R. 198*** that *"In determining whether a husband has*

behaved in such a way as to make it unreasonable to expect a wife to live with him, the court must consider all circumstances constituting such behaviour including the history of the marriage. It is always a question of fact. The conduct complained of must be grave and weighty, and mere trivialities will not suffice for ***Act 367*** *is not a Casanova's Charter. The test is objective".*

[34] The Respondent having denied the allegation of unreasonable behaviour, the onus was on the Petitioner to lead cogent and admissible evidence for the court to make a determination in her favour that, indeed, the Respondent had behaved in such a way that she could not reasonably be expected to live with him. It is a trite learning that where the other Party denies a Party's averment, he does not prove it by merely mounting the witness box and repeating the averments on oath.

In the case of ***Majolagbe v. Larbi & Ors. (1959) GLR 190*** **at page 192** held that: *"Proof in law is the establishment of facts by proper legal means. Where a party makes an averment capable of proof in some positive way eg, by producing documents, description of things, reference to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into the witness box and repeating the averment on oath or having it repeated on oath by his witnesses. He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true".* See also the case of ***Adjetey Agosu vrs. Kotey & Ors [2003-2004] SCGLR 420***.

[35] The Petitioner, in her evidence-in-chief, repeated her averments in the petition under oath, stating that the Respondent had behaved in such a manner that she could not reasonably be expected to live with him due to his conduct, which had caused her anxiety and distress.

[36] She revealed that they had not lived together as husband and wife for a continuous period of six (6) years immediately preceding the presentation of the Petition, and that the Respondent had caused her much anxiety, distress and embarrassment.

[37] According to her, over time, the Respondent's attitude unreasonably changed towards her, causing her significant emotional and psychological distress. More so, several attempts by themselves, mutual friends, and some family members to reconcile them had been unsuccessful.

[38] The Respondent began his testimony by emphasising that the marriage between him and the Petitioner had broken down beyond reconciliation. He revealed that they had not lived together for more than seven (7) years immediately prior to the commencement of this suit.

[39] He lamented that the Petitioner had caused him significant anxiety and distress because she had behaved in a way that he could not reasonably be expected to live with her.

[40] At the trial, both parties, during cross-examination, admitted that the marriage had broken down beyond reconciliation and agreed that it should be dissolved. In line with their settlement on the ancillary reliefs, Counsel for the Petitioner and Counsel for the Respondent, did not conduct a rigorous cross-examination, as the parties agreed that, due to irreconcilable differences, the marriage ought to be dissolved.

[41] The evidence led by the Parties rather proves that differences exist between them, and despite diligent efforts at settlement, they have not been able to reconcile their differences within the meaning and intendment of section 2(1)(f) of Act 367.

In the case of ***Mensah v. Mensah [1976] 2 GLR 198***, the Court in holding 2, stated that, *"in seeking to prove failure to reconcile differences, differences must be distinguished from disputes. The differences must be between spouses. They must be such as to make it impossible for the marriage to subsist."* The court further held at page 207 that:

"The question then arises whether there has been any diligent efforts to resolve these differences. The Act is silent on who should make the diligent effort; should it be the Petitioner, the Respondent

or both, or can it even be the children or the church, or other third parties? I am of the view that all that is required under the section is that a genuine effort should have been made by someone. Who made the effort is, I think, not very relevant, but the effort must have been unsuccessful".

Under Section 2(3) of Act 367, a court shall refuse to grant a petition for divorce notwithstanding the fact that a Petitioner has proven any of the facts in Section 2(1) if there is a reasonable possibility of reconciliation. In the case *of* ***Adjetey v. Adjetey [1973] 1 GLR 216***, the court held in holding 2 that:

"On a proper construction of section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367), the court could still refuse to grant a decree even where one or more of the facts set out in section 2 (1) had been established. It was therefore incumbent upon a court hearing a divorce petition to carefully consider all the evidence before it; for a mere assertion by one of the parties that the marriage had broken down beyond reconciliation would not be enough".

vii. Analysis

[42] From the Parties' uncontroverted evidence, the Petitioner and Respondent have not cohabited for seven years prior to filing the Petition, nor have they been communicating. I believe that the Petitioner and Respondent are living separate lives, much like single individuals, and have moved on with their lives without each other. It is reasonable to conclude that a couple who have not lived together for seven years and are not communicating with each other are unlikely to be engaging in sexual relations. All signs suggest that both parties have abandoned the marriage. As a result, the union is now merely a shell, devoid of substance.

[43] Furthermore, based on the evidence, it is clear that the Parties have had disagreements, and efforts by family and friends to help them reconcile their differences have been unsuccessful. Additionally, they agree that all other attempts at reconciliation

have also failed. Under Section 2 (1) (f) of Act 367, *supra*, if the Parties are unable to reconcile their differences after diligent efforts, the Court may proceed to dissolve the marriage.

[44] Admittedly, in every marriage, it is the parties involved in the union who can decide whether to continue with it or not. That is why divorce matters are in personam. They alone can determine how comfortable, or otherwise, their union is. As the adage goes, "*Only the wearer knows where it pinches*". Human dispositions are not the same, so it would be oppressive to expect someone to endure certain issues simply because others can. By extension, some parties resolve the usual wear and tear of marriage over time; others see it as the final blow and, therefore, feel they must leave the marriage. Clearly, neither party intends to continue the marriage they entered into on 5th July 2010, and all efforts to reconcile them have failed. The Court should not insist that the Parties continue to live together in a union they do not wish to continue. To borrow the words of Amissah J.A., in the case of ***Knudsen v. Knudsen [1976] 1 GLR 204***, *"if a man comes to court saying that his marriage has reached a stage that he "cannot reasonably be expected to live" with his wife any more, should a court say to him oh yes you can?''*.

viii. Conclusion:

[45] On the totality of the evidence adduced before this Court, I find that the marriage celebrated between the Petitioner and the Respondent on 5th July, 2010, at the Registrar's Office (KMA), Kumasi, under the Marriages Act (CAP 127), has broken down beyond reconciliation.

[46] I hereby decree that the marriage is dissolved forthwith and the Marriage Certificate is cancelled.

[47] The Terms of Settlement dated 5th March, 2025, and filed in the Registry of this Court on 5th March, 2025, is hereby adopted as consent judgment between the Parties as follows:

a. That the Petitioner is to retain full custody of the issue of the marriage, namely, Jason N'adom Manu, with reasonable access of the named issue to the Respondent, including but not limited to vacation, on agreement by the parties and where the need arises.
b. That neither party shall travel with the child outside the jurisdiction or within the jurisdiction without prior consent of the other party, including but not limited to their educational and welfare needs.
c. That the Respondent shall fully pay the school fees of the issue of the marriage.
d. That the total expenses, incurred monthly for the care and maintenance of the issue of the marriage, currently amounting to Five Thousand Two Hundred and Ninety Ghana Cedis and Seventy Pesewas (GH¢5,290.70) shall be shared equally between the parties in the ratio of 50% to 50%.
e. That the percentage of the contribution towards the child's expenses shall be subject to periodic review and renewal, taking into account any increase in expenses. However, the proportionate percentage attributed to each party shall remain constant.
f. That in the event the issue of the marriage requires a major medical procedure, the cost and expenses associated therewith shall equally be borne by both parties.
g. That this term shall represent a full and final settlement of all the ancillary reliefs claimed by the Petitioner, save the dissolution of the marriage, which is to be determined by the Honourable Court.
h. That the parties pray the above Terms of Settlement be adopted by the Court as consent judgment in this suit.

[48] I make no order as to cost.

(SGD).

H/H LAWRENCIA A.A.D. GYAMFI

(CIRCUIT JUDGE)

Appearances:

Philomena Owusu Boateng Esq, holding the brief of Kwaku Yeboah Appiah Esq, for the Petitioner

Kwabena Gyamfi Esq, for the Respondent